

Chapter 11 Community Protection

Subchapter 11A - Alcoholic Beverage Sales Within 300 Feet Of Church, School, Day-Care Or Public Hospital

Subchapter 11B - Graffiti Removal

Subchapter 11C Nuisance Abatement Procedures

Subchapter 11D Junked Vehicle, Abatement And Removal

Subchapter 11A - Alcoholic Beverage Sales Within 300 Feet Of Church, School, Day-Care Or Public Hospital

RESOLUTION PROHIBITING SALE OF ALCOHOLIC BEVERAGES WITHIN 300 FEET OF ANY CHURCH, SCHOOL OR PUBLIC HOSPITAL

IT IS ORDERED that, effective the 25th day of September 2001, in the territory of Harris County outside of incorporated cities and towns, the sale of alcoholic beverages by any dealer is prohibited within 300 feet of any church, public or private school, including parochial school, day-care center, child-care facility, or public hospital. The measurement of the distance between the place of business where alcoholic beverages are sold and the church or public hospital shall be along the property lines of the street fronts and from front door to front door, and in direct line across intersections. The measurement of the distance between the place of business where alcoholic beverages are sold and the public schools, private schools, day-care centers or child-care facilities shall be in a direct line from the property line of the public school, day-care center or child-care facility to the property line of the place of business, and in a direct line across intersections, except if the place of business is located on or above the fifth story of a multistory building, the measurement of the distance shall be a direct line across intersections and vertically up the building at the property line to the base of the floor on which the business is located. Application of this Order granting or renewing an alcoholic beverage permit or license shall conform with Tex. Alco. Bev. Code Ann. §§ 109.33, 109.331 & 109.59, as amended, reference being made to such Code sections for their particulars.

([Order of 8-23-1983](#); [Order of 2-27-1996](#); [Order of 9-20-2001](#))

State Law Reference: Tex. Alco. Bev. Code Ann. §§ [109.33](#), [109.331](#) and [109.59](#).

Adopted August 23, 1983, amended February 27, 1996, amended September 20, 2001.

Subchapter 11B - Graffiti Removal

Sec 1:

Sec 2:

Sec 3:

Commissioners Court finds:

Effective September 1, 2009, the 81st Legislature adopted § 250.006 of the Tex. Loc. Gov't Code Ann., GRAFFITI REMOVAL.

Section 250.006 states that a county by order may require the owner of property within the jurisdiction of the county to remove graffiti from the owner's property on receipt of notice from the county, assess expenses associated therewith, and attach a lien to the property if certain and specific prerequisites are performed pursuant to the statute.

NOW, THEREFORE, Whereas the Commissioners Court of Harris County desires to adopt § 250.006 of the Tex. Loc. Gov't Code Ann.

Commissioners Court orders:

BE IT ORDERED BY THE COMMISSIONERS COURT OF HARRIS COUNTY, TEXAS THAT:

Sec 1:

The recitals set forth in this Order are true and correct.

(Order of 9-15-2009, § 1)

Sec 2:

§ 250.006 of the Tex. Loc. Gov't Code Ann., GRAFFITI REMOVAL, is in the best interest of Harris County.

(Order of 9-15-2009, § 2)

Sec 3:

All Harris County officials and employees are authorized to do any and all things necessary or convenient to accomplish the purpose of this Order.

(Order of 9-15-2009, § 3)

Adopted September 15, 2009.

State Law Reference: Tex. Loc. Gov't Code Ann. § 250.006.

Subchapter 11C Nuisance Abatement Procedures

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Sec 1 Scope And Purpose

1.1 These procedures are adopted by the Commissioners Court of Harris County pursuant to the Neighborhood Nuisance Abatement Act, codified as [Chapter 343 of the Texas Health and Safety Code](#), as amended, and shall apply to the unincorporated areas of Harris County, Texas.

1.2 The procedures provided for herein are not intended, nor shall they be construed, to limit in any way other remedies, causes of action, or rights provided for by law.

1.3 It is the purpose of these procedures to protect and enhance the desirability and the aesthetic character of residential and commercial neighborhoods in the unincorporated areas of Harris County and to control and abate certain conditions which lead to neighborhood blight and are detrimental to the overall health, welfare, and safety of the citizens of Harris County.

[\(Order of 8-24-1993\)](#)

Sec 2 Definitions, Neighborhood Nuisance Abatement

As used in this subchapter, the words and terms defined in this section shall have the meanings ascribed, unless the context clearly indicates another meaning.

Abate means to eliminate a nuisance by removal, repair, rehabilitation, or demolition.

Administrator means the Director of the Harris County Health Department of Harris County, Texas, or a county employee acting under the Director's supervision and control.

Building means a structure built for the support, shelter, or enclosure of a person, animal, chattel, machine, equipment, or other movable property.

Commissioners Court means the Commissioners Court of Harris County. {Cross Reference [Chapter 1, Section 2](#) (Commissioners Court)}

County means Harris County. {Cross Reference [Chapter 1, Section 2](#) (County)}

Garbage means decayable waste from a public or private establishments or restaurant. The term includes vegetable, animal, and fish offal and animal and fish carcasses, but does not include sewage, body waste, or industrial by-product.

Hearing Examiner means any board, commission, or official designated by the Commissioners Court to conduct a public hearing requested in accordance with this Subchapter.

Neighborhood means

- a. a platted subdivision; or
- b. property contiguous to and within 300 feet of a platted subdivision.

Order means the "Order Adopting Procedures for the Abatement of Neighborhood Nuisances and the Abatement and Removal of a Junked Vehicle as a Public Nuisance from Private and Public Property" which was adopted on [August 24, 1993](#).

Person has the meaning assigned to that term by subdivision (2) of [Section 311.005 of the Texas Government Code](#), as amended. {Cross Reference [Chapter 1, Section 2](#) (Person)}

Platted Subdivision means a subdivision that has its approved or unapproved plat recorded with the county clerk of the county in which the subdivision is located. {Cross Reference [Subchapter 28B, Section 2](#), (Residential subdivision); [Subchapter 42C\(A\), Section 285.2](#) (Platted)}.

Premises means all privately owned property, including vacant land or a building designed or used for residential, commercial, business, industrial, or religious purposes. The term includes a yard, ground, walk, driveway, fence, porch, steps, or other structure appurtenant to the property.

Public Nuisance is

- a. Keeping, storing, or accumulating refuse on premises in a neighborhood unless such refuse is entirely contained in a closed receptacle;
- b. Keeping, storing, or accumulating rubbish or any unused, discarded, or abandoned object, including newspapers, vehicles, refrigerators, stoves, furniture, tires, and cans, on premises in a neighborhood for 10 days or more, unless the rubbish or object is completely enclosed within a

building or is not visible from a public street;

c. Maintaining premises in a manner that creates an unsanitary condition likely to attract or harbor mosquitoes, rodents, vermin, or disease-carrying pests;

d. Allowing weeds to grow on premises in neighborhood if such weeds are located within 300 feet of another residence or commercial establishment.

e. Maintaining a building in a manner that is structurally unsafe or constitutes a hazard to safety, health, or public welfare because of inadequate maintenance, unsanitary conditions, dilapidation, obsolescence, fire hazard, disaster, damage, or abandonment.

f. Maintaining on abandoned and unoccupied property in a neighborhood a swimming pool that is not protected with:

1. a fence that is at least four feet high and that has a latched gate that cannot be opened by a child; or
2. a cover over the entire swimming pool that cannot be removed by a child.

g. This definition does not apply to a site or facility that is permitted and regulated by a state agency.

Public Street means the entire width between property lines of a road, street, way, thoroughfare, or bridge if any part of the road, street, way, thoroughfare, or bridge is opened to the public for vehicular or pedestrian traffic.

Receptacle means a container that is composed of durable material and designed to prevent the discharge of its contents and to make its contents inaccessible to animals, vermin, or other pests.

Refuse means garbage, rubbish, paper, and other decayable and nondecayable waste, including vegetable matter and animal and fish carcasses.

Rubbish means nondecayable waste from a public or private establishment or residence.

Weeds means all rank and uncultivated vegetable growth or matter that:

- a. has grown to more than thirty-six (36) inches in height; or
- b. may create an unsanitary condition or may become a harborage for rodents, vermin, or other disease carrying pests, regardless of the height of the weeds.

[\(Order of 8-24-1993\)](#)

Sec 3 Public Nuisances Prohibited

A person may not cause, permit, or allow a public nuisance, as that term is defined in this subchapter, on any premises.

[\(Order of 8-24-1993\)](#)

Sec 4 Investigation

4.1 The Commissioners Court of Harris County hereby appoints the Director of the Harris County Health Department, a regularly salaried full-time County employee, to administer this program and the abatement procedures prescribed in this subchapter.

4.2 A complaint to abate a public nuisance under these procedures may be initiated by any person by written complaint filed with the Administrator.

4.3 The Administrator shall make a record of all complaints received.

4.4 The Administrator shall review the complaint and make a determination as to whether a public nuisance exists. In order to administer these procedures, the Administrator may enter any premises in the unincorporated areas of the County at a reasonable time to inspect, investigate, or abate a nuisance, or to enforce [Chapter 343 of the Texas Health and Safety Code](#), as amended. Before entering the premises, the Administrator must exhibit proper identification to the occupant, manager, or other appropriate person.

4.5 If the Administrator determines that a public nuisance does not exist, the matter will be closed and no further action taken thereon.

4.6 If the Administrator determines that a public nuisance exists, a Notice to Abate the Public Nuisance shall be served on the owner of the premises on which the public nuisance exists. This Notice to Abate the Public Nuisance shall comply with, and be served as provided in, [Section 6](#) of this Subchapter.

4.7 After the expiration of 30 days from the date on which the County's Notice to Abate the Public Nuisance is served, the Administrator shall inspect the premises described in the complaint.

4.8 If the Administrator determines that the public nuisance has been abated, a record shall be made of the findings and take no further action thereon.

4.9 If the Administrator determines that the public nuisance has not been abated and that a hearing has been requested, the Administrator shall follow the procedures set out in [Section 7](#) of this subchapter.

4.10 If the Administrator determines that the nuisance has not been abated, but there has been no request for a hearing, the Administrator shall follow the procedures set out in [Section 5](#) of this subchapter.

[\(Order of 8-24-1993\)](#)

Sec 5 Procedures When No Hearing Is Requested

5.1 If the Administrator determines that the public nuisance has not been abated and a hearing has not been requested, then the Administrator shall request a title opinion from the County Attorney regarding ownership of the premises on which the public nuisance exists.

5.2 If the title opinion reflects an owner other than the person shown on the Notice to Abate the Public Nuisance, the Administrator shall serve a Notice to Abate the Public Nuisance on the person named as owner in the title opinion as set out in [Section 6 of Subchapter 11C](#), as if no prior action had been taken on the complaint subsequent to the service of the first Notice to Abate the Public Nuisance.

5.3 If the title opinion shows the owner to be the person served with the Notice to Abate the Public Nuisance, then:

- a. The Administrator shall estimate the cost to abate the public nuisance;
- b. The Administrator shall forward the estimate of the cost to Commissioners Court; and
- c. The Commissioners Court shall determine whether or not to order the abatement of the public nuisance and assess the costs of abating the public nuisance, the cost of legal notification by publication, if said procedure was utilized, plus an administrative fee of \$100, on the owner of the premises on which the public nuisance exists, and/or the assessment of said costs on the premises on which the public nuisance exists. The County shall be entitled to interest beginning on the 31st day after the date of the assessment against the property at the rate of 10 percent per year.

[\(Order of 8-24-1993\)](#)

Sec 6 Notice Requirements

6.1 Each Notice to Abate the Public Nuisance must contain the following information:

- a. The specific condition that constitutes a public nuisance;
- b. The street address or other general description of the property on which the public nuisance exists;
- c. That the person receiving the notice must abate the public nuisance before the 31st day after the date on which the notice is served;
- d. That failure to abate the public nuisance may result in abatement by the County, assessment of costs, and the attachment of a lien to the property on which the public nuisance exists;
- e. That [Section 343.012 of the Texas Health and Safety Code](#), as amended, provides that a person commits a misdemeanor (punishable by a fine of not less than \$50 or more than \$200 for the first offense) if the public nuisance remains unabated after the 30th day after the date on which the person receives notice from a county official, agent, or employee to abate the nuisance;
- f. Each day a violation occurs is a separate offense. If it is shown at trial of the defendant that the defendant has been previously convicted of an offense under this section, the defendant may be punished with a fine of not less than \$200 or more than or more than \$1,000, confinement in jail for not more than six months, or both. The court shall order abatement of the nuisance if the defendant is convicted of an offense under [Section 343.012 of the Texas Health and Safety Code](#), as amended;
- g. That the owner, lessee, occupant, agent, or person in charge of the premises is entitled to submit, before the 31st day after the date on which the notice is served, a written request for a hearing which should contain the name and address of the person to be notified of the date, time and place of the hearing;
- h. That said Request for Hearing may be given to the Administrator by hand delivery to the Administrator's office which is currently located at 2501 Dunstan, Houston, Texas, or by certified mail, return receipt requested, addressed to the Director of the Harris County Health Department, P. O. Box 25249, Houston, Texas 77265; and

- i. That the owner, lessee, occupant, agent, or person in charge of the premises is entitled to appear at the scheduled hearing and is entitled to present evidence, examine witnesses, and argue on the owner's behalf.

6.2 The Notice to Abate the Public Nuisance shall be served on the owner in the following manner:

- a. in person or by registered or certified mail, return receipt requested; or
- b. if the owner cannot be located or identified, by posting a copy on the premises on which the public nuisance exists and by publishing the notice in a newspaper with general circulation in the county, two times within 10 consecutive days.

[\(Order of 8-24-1993\)](#)

Sec 7 Public Hearing Before Hearing Examiner

7.1 A person receiving a Notice to Abate the Public Nuisance under this subchapter is entitled to a public hearing before a Hearing Examiner. Such a request may be perfected by submission of a written request to the Administrator within 31 days of receipt of the Notice to Abate the Public Nuisance.

7.2 If a hearing has been requested, the Administrator shall set a hearing date and send a Notice of Hearing to the person and address stated in the Request for Hearing or by serving the owner in the same manner as used for serving the Notice to Abate the Public Nuisance in [Section 6](#) of this subchapter. The Notice of Hearing shall state the date, time, and place of the hearing and shall be provided at least 10 days prior to the date of the hearing. The ten-day notice requirement may be waived by the person filing the request for hearing if such waiver is in writing and signed by the person filing the Request for Hearing.

7.3 The owner and/or the owner's representative present at the hearing shall be entitled to present testimony and other evidence, examine witnesses, and argue on the owner's behalf.

7.4 Any interested person, including the Administrator and Investigator, may appear and present testimony and other evidence.

7.5 All persons testifying at the hearing shall be under oath.

7.6 The Hearing Examiner shall be allowed to question any person testifying. The Hearing Examiner shall assess the testimony fairly and impartial and in accordance with the law.

7.7 The Hearing Examiner shall make a written determination as to whether a public nuisance exists and sign such written determination. A copy shall be sent to the Administrator. Upon the receipt of the copy of the written determination, the Administrator or the Administrator's representative shall hand deliver or send by certified mail, return receipt requested, a copy of the written determination of the Hearing Examiner to the person designated in the Request for Hearing. If mailed, it shall be mailed to the address designated in said request.

[\(Order of 8-24-1993\)](#)

Sec 8 Post-Hearing Procedures When No Appeal Filed

8.1 If the Hearing Examiner determines that a nuisance exists, but no appeal is filed pursuant to [Section 9](#) of this subchapter, upon the expiration of 30 days from receipt of the determination by the person designated in the Request of Hearing, the Administrator will determine whether or not the public nuisance has been abated.

8.2 If the public nuisance has been abated, then the Administrator shall make a record thereof and take no further action thereon.

8.3 If the public nuisance has not been abated, the Administrator will estimate the cost to abate the public nuisance and forward the estimate to the Commissioners Court.

8.4 The Commissioners Court shall determine whether or not

a. to order the abatement of the public nuisance;

b. to assess the cost of abating the public nuisance, the cost of legal notification by publication, if said procedure was utilized, an administrative fee of \$100.00, plus interest beginning on the 31st day after the date of the assessment on the owner of the premises on which the public nuisance exists; and/or

c. to assess the costs of abating the public nuisance, the cost of legal notification by publication, if said procedure was utilized, an administrative fee of \$100.00, plus interest beginning on the 31st day after the date of the assessment against the premises on which the public nuisance exists.

[\(Order of 8-24-1993\)](#)

Sec 9 Appeal To Commissioners Court

9.1 An appeal from the written determination of the Hearing Examiner to Commissioners Court may be perfected by giving written Notice of Appeal to the Administrator within 31 days of receipt of a copy of the Hearing Examiner's determination by the person to be notified as shown in the Request for Hearing.

9.2 The Notice of Appeal must be in writing and must be signed by the person giving such Notice or his duly authorized representative. The Notice of Appeal must state the name and address of the person giving such Notice or his duly authorized representative.

9.3 Notice of Appeal may be given to the Administrator by hand delivery to his office which is currently located at 2501 Dunstan, Houston, Texas or by certified mail, return receipt requested, addressed to the Director of the Harris County Health Department, P.O. Box 25249, Houston, Texas 77265.

9.4 Upon receipt of a Notice of Appeal, the Administrator shall notify the Commissioners Court and the Commissioners Court shall set the date, time, and place for the appeal hearing.

9.5 The Administrator shall notify the person, or his duly authorized representative, at the address designated in the Notice of Appeal by certified mail, return receipt requested, or the notice may be delivered in person, of the date, time, and place of the appeal hearing set by Commissioners Court. This notice shall be provided at least 10 days prior to the date of the appeal hearing. The ten-day notice requirement herein may be waived by the filing such appeal if such waiver is in writing and signed by the person filing the appeal.

9.6 The Commissioners Court will conduct the appeal hearing and shall hear the testimony of any witness who shall be under oath. Each commissioner and the county judge may question any witness testifying.

9.7 The Commissioners Court Order determining the final disposition shall be entered in the Minutes of Commissioners Court. A copy of such Commissioners Court Order shall be sent by the Administrator by certified mail, return receipt requested, to the person or the duly authorized representative at the address designated in the Notice of Appeal.

9.8 If Commissioners Court determines that a public nuisance does not exist, then the Administrator

shall close the matter and take no further action thereon.

9.9 If Commissioners Court determines that a public nuisance does exist, then the Administrator shall mail by certified mail, return receipt requested, to the person or the duly authorized representative at the address designated in the Notice of Appeal, a copy of such Commissioners Court Order making such determination.

[\(Order of 8-24-1993\)](#)

Sec 10 Post-Appellate Procedures

10.1 Upon the expiration of 30 days from the date that the person or the person's duly authorized representative receives a copy of the Commissioners Court Order determining that a nuisance does exist, the Administrator shall inspect the premises to determine if the public nuisance has been abated.

10.2 If the public nuisance has been abated, then the Administrator shall notify Commissioners Court in writing that the public nuisance has been abated and take no further action thereon.

10.3 If the public nuisance has not been abated, the Administrator shall estimate the cost to abate the public nuisance and forward the nuisance to the Commissioners Court.

10.4 The Commissioners Court shall determine whether or not

- a. to order the abatement of the public nuisance;
- b. to assess the cost of abating the public nuisance, the cost of legal notification by publication, if said procedure was utilized, an administrative fee of \$100.00, plus interest beginning on the 31st day after the date of the assessment on the owner of the premises on which the public nuisance exists; and/or
- c. to assess the costs of abating the public nuisance, the cost of legal notification by publication, if said procedure was utilized, an administrative fee of \$100.00, plus interest beginning on the 31st day after the date of the assessment against the premises on which the public nuisance exists.

[\(Order of 8-24-1993\)](#)

Sec 11 Additional Duties Of Administrator

11.1 If an owner fails or refuses to abate a public nuisance and the Commissioners Court determines to abate the same pursuant to this subchapter, then the Administrator shall proceed to let a county contract for such abatement. The procedure for letting such contract shall be substantially the same as that for letting county construction contracts. The abatement of the public nuisance shall be in compliance with any applicable federal, state and local laws, rules, procedures, and ordinances. Upon completion of such abatement, the Administrator shall calculate the cost that the County incurred in abating the nuisance.

11.2 If the Commissioners Court has ordered assessment of such costs against the property on which the nuisance exists, the Administrator shall prepare the lien documents and, after such documents are reviewed by the County Attorney, record same in the Official Public Records of Real Property of Harris County. The amount of the lien shall be the amount of the cost of removal, the cost of legal notification by publication, if said procedure was utilized, an administrative fee of \$100, plus interest beginning on the 31st day after the date of the assessment. The original lien documents shall be returned to the Administrator after recording. The County is authorized by [Section 343.023 of the Texas Health and](#)

[Safety Code](#), as amended, to collect 10 percent interest per year on assessments pursuant to these procedures.

11.3 If the Commissioners Court has ordered assessment of such costs against the owner of the premises on which the nuisance exists, then the Administrator will request the County Attorney to proceed to collect the amount of the cost of removal, the cost of legal notification by publication, if said procedure was utilized, an administrative fee of \$100 plus interest beginning on the 31st day after the date of the assessment, from said owner. The County Attorney may file suit to recover same if the County Attorney determines that the suit is necessary and economically feasible.

11.4 Upon the satisfaction of any judgment or order issued pursuant to this subchapter, the Administrator is authorized to sign any release or other document, upon review and approval by the County Attorney, to confirm that said orders or judgments have been complied with. This includes, but is not limited to, releases of liens filed in the Official Public Records of Real Property of Harris County.

[\(Order of 8-24-1993\)](#)

Sec 11 Effective Date

The procedures set forth in this subchapter shall be effective as of September 1, 1993. All previously adopted procedures are superseded and repealed.

[\(Order of 8-24-1993, Section 13\)](#)

Subchapter 11D Junked Vehicle, Abatement And Removal

[Sec 1 Scope And Purpose, Junked Vehicle Abatement](#)

[Sec 2 Definitions, Junked Vehicle Abatement And Removal](#)

[Sec 3 Junked Vehicle As Public Nuisance](#)

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[Sec 10 Appeal To Commissioners Court](#)

[Sec 11 Post-Appellate Procedures](#)

[Sec 12 Disposal Of Junked Vehicles](#)

[Sec 13 Effective Date](#)

Sec 1 Scope And Purpose, Junked Vehicle Abatement

1.1 These procedures are adopted by the Commissioners Court of Harris County pursuant to [Sections 5.09-5.12 of Tex. Rev. Civ. Stat. Ann. art. 4477-9a](#), as amended, and shall apply in the unincorporated areas of Harris County.

1.2 The provisions of this Order are not penal. However, proceedings conducted to abate nuisances in accordance with this Order shall not be construed to preclude prosecution under [Tex. Rev. Civ. Stat. Ann. art. 4477-9a, Section 5.08](#), as amended, or vice versa. Further, these procedures do not affect the authority of a peace officer to authorize the immediate removal, as an obstruction to traffic, of a motor vehicle left on public property. {Note: [Tex. Rev. Civ. Stat. Ann. art. 4477-9a, Section 5.08](#) was recodified as [Section 683.072](#) and [Section 683.073](#), Texas Transportation Code with the adoption of the Texas Transportation Code, a nonsubstantive revision of statutes relating to transportation, [Acts 1995, 74th Leg., ch. 165](#), Sec. 1, eff. Sept. 1, 1995.}

1.3 All procedures under this Order must be administered by regularly salaried, full-time employees of

the County, except that the removal of a motor vehicle or part of a motor vehicle from property may be by any duly authorized person.

{Note: Tex. Rev. Civ. Stat. Ann. art. 4477-9a was recodified as [Transportation Code Chapter 683 Subchapter E](#), with the adoption of the Texas Transportation Code, a nonsubstantive revision of statutes relating to transportation, [Acts 1995, 74th Leg., ch. 165](#), Sec. 1, eff. Sept. 1, 1995.}

[\(Order of 8-24-1993\)](#)

Sec 2 Definitions, Junked Vehicle Abatement And Removal

As used in this subchapter, the words and terms defined in this section shall have the meanings ascribed, unless the context clearly indicates another meaning.

Administrator means the Director of the Harris County Health Department or a county employee under the Director's supervision and control.

Antique auto means a passenger car or truck that was manufactured in 1925 or before or a passenger car or truck that is at least 35 years old.

Collector means the owner of one or more antique or special interest vehicles who collects, purchases, acquires, trades, or disposes of special interest or antique vehicles or parts of them for personal use in order to restore, preserve, and maintain an antique or special interest vehicle for historic interest.

Commissioners Court means the Commissioners Court of Harris County. {Cross Reference [Chapter 1, Section 2](#) (Commissioners Court)}

County means Harris County, Texas. {Cross Reference [Chapter 1, Section 2](#) (County)}

Demolisher means a person whose business is to convert a motor vehicle into processed scrap or scrap metal or to otherwise wreck or dismantle a motor vehicle.

Garagekeeper means an owner or operator of a parking place or establishment, motor vehicle storage facility, or establishment for the servicing, repair, or maintenance of a motor vehicle.

Hearing Examiner means any board, commission, or official designated by the Commissioners Court to conduct a public hearing requested in accordance with this subchapter.

Investigator means a county employee, officer (including a peace officer), or agent authorized by the Administrator to investigate complaints filed under this Subchapter.

Junked vehicle means a motor vehicle as defined in [Section 1, Chapter 42, General Laws, Acts of the 41st Legislature, 2nd Called Session](#), 1929 (Article 6701d-11, Vernon's Texas Civil Statutes):

- (1) that is inoperative; and
- (2) that does not have lawfully affixed to it either an unexpired license plate or a valid motor vehicle safety inspection certificate, that is wrecked, dismantled, partially dismantled, or discarded, or that remains inoperable for a continuous period of more than 45 days;

provided that the term "junked vehicle" shall not be construed to include:

- (1) a motor vehicle or part of a motor vehicle that is completely enclosed within a building in a lawful manner where it is not visible from the street or other public or private property;

(2) a motor vehicle or part of a motor vehicle that is stored or parked in a lawful manner on private property in connection with the business of a licensed vehicle dealer or junkyard; or

(3) an unlicensed, operable or inoperable antique or special interest vehicle stored by a collector on the collector's property, if the vehicle and the outdoor storage area are maintained in a manner so that they do not constitute a health hazard and are screened from ordinary public view by means of a fence, rapidly growing trees, shrubbery, or other appropriate means.

{Note: See [Texas Transportation Code Section 683.071](#).}

Junkyard means an establishment or place of business maintained, used, or operated for storing, keeping, buying, or selling junk, for processing scrap metal, or for maintaining or operating an automobile junkyard. The term includes garbage dumps and sanitary fills.

Motor vehicle means a motor vehicle subject to registration under the Certificate of Title Act (Article 6687-1, Vernon's Texas Civil Statutes, {Note: recodified as [Transportation Code Chapter 501](#)}) and includes a motorboat, outboard motor, or vessel subject to registration under [Chapter 31, Texas Parks and Wildlife Code](#).

Order means the "[Order Adopting Procedures for the Abatement of Neighborhood Nuisances and the Abatement and Removal of a Junked Vehicle as a Public Nuisance from Private and Public Property](#)," which was adopted on August 24, 1993.

Peace officer means a sheriff, deputy sheriff, constable, or deputy constable.

Person has the meaning assigned to that term by subdivision (2) of Section 311.005 of the Texas Government Code, as amended. {Cross Reference [Chapter 1, Section 2.1](#) (Person)}

Public nuisance shall mean the following: a junked vehicle that is located in a place where it is visible from a public place or public right-of-way is detrimental to the safety and welfare of the general public, tends to reduce the value of private property, invites vandalism, creates fire hazards, and is detrimental to the economic welfare of the state by producing urban blight adverse to the maintenance and continuing development of the municipalities in the state.

Special interest vehicle means a motor vehicle of any age that has not been altered or modified from the original manufacturer's specifications and, because of its historic interest, is being preserved by hobbyists.

Storage facility means a garage, parking lot, or any type of facility or establishment for the servicing, repairing, storing, or parking of motor vehicles.

[\(Order of 8-24-1993\)](#)

Sec 3 Junked Vehicle As Public Nuisance

A person may not maintain a public nuisance, as that term is defined in this subchapter.

[\(Order of 8-24-1993\)](#)

Sec 4 Investigation, Junked Vehicles

4.1 The Commissioners Court of Harris County hereby appoints the Director of the Harris County Health Department, a regularly salaried, full-time County employee, to administer this program and the

abatement procedures prescribed in this subchapter. Investigators designated by the Administrator shall assist in the administration of this program. Upon the completion of each investigation, the Investigator shall provide the Administrator with a copy of such file.

4.2 A complaint to abate a public nuisance under these procedures may be initiated by any person by written complaint filed with the Administrator.

4.3 The Administrator shall keep a record of all complaints received.

4.4 The Administrator shall assign an Investigator to review the complaint and make a determination as to whether a public nuisance exists. In order to administer these procedures, an Investigator may enter private land to examine a motor vehicle or motor vehicle part, obtain information as to the identity of the vehicle, and remove or cause the removal of a motor vehicle or motor vehicle part that constitutes a public nuisance.

4.5 If the Investigator determines that a public nuisance does not exist, the Investigator shall submit such findings to the Administrator who will then close the matter and take no further action thereon.

4.6 If the Investigator determines that a public nuisance exists, the Investigator shall submit such findings to the Administrator. The Investigator shall serve a "Notice to Abate Nuisance" which shall comply with and be served as provided in [Section 5](#) and [Section 6](#) of this subchapter.

4.7 After the expiration of 10 days from the date on which the County's Notice to Abate Nuisance is served, the Investigator shall inspect the premises described in the complaint.

4.8 If the Investigator determines that the public nuisance has been removed and abated, the investigator shall make a record of the findings, provide a copy of such findings to the Administrator, and take no further action thereon.

4.9 If the Investigator determines that the public nuisance has not been removed and abated and that a hearing has been requested, the Investigator shall follow the procedures set out in [Section 8](#) of this subchapter.

4.10 If the Investigator determines that the public nuisance has not been removed and abated and that a hearing has not been requested, the Investigator shall follow the procedures set out in [Section 7](#) of this subchapter.

[\(Order of 8-24-1993\)](#)

Sec 5 Notice Requirements

The Notice to Abate Nuisance on Private Property shall contain the following information:

- a. The nature of the public nuisance on private property;
- b. The street address or other general description of the property on which the public nuisance exists;
- c. That the owner, lien holder, and/or owner or occupant of the private premises on which the public nuisance exists and who receives the notice must remove and abate the public nuisance within 10 days after the date on which the notice is served;
- d. That failure to remove and abate the public nuisance may result in removal and abatement by the County;

e. That Tex. Rev. Civ. Stat. Ann. art. 4477-9a, Section 5.08, as amended, provides that a person commits an offense (punishable by a fine not to exceed \$200) if that person maintains a public nuisance, and that on conviction, the court shall order removal and abatement of the nuisance; {Note: Tex. Rev. Civ. Stat. Ann. art. 4477-9a, Section 5.08 was recodified as [Section 683.072](#) and [Section 683.073](#), Texas Transportation Code with the adoption of the Texas Transportation Code, a nonsubstantive revision of statutes relating to transportation, [Acts 1995, 74th Leg., ch. 165](#), Sec. 1, eff. Sept. 1, 1995.}

f. That the last registered owner of the junked motor vehicle, any lien holder of record, or the owner or occupant of the private premises on which the public nuisance exists is entitled to submit, before the expiration of the 10-day period after service of the notice, a written request for a hearing which should contain the name and address of the person to be notified of the date, time, and place of the hearing;

g. That said Request for Hearing may be given to the Administrator by hand delivery to his office which is currently located at 2501 Dunstan, Houston, Texas, or by certified mail, return receipt requested, addressed to the Director of the Harris County Health Department, P. O. Box 25249, Houston, Texas 77265; and

h. That the owner of the junked motor vehicle, any lien holder of record, or the owner or occupant of the private premises is entitled to appear at the scheduled hearing and is entitled to present evidence, examine witnesses, and argue on the junked vehicle owner's behalf.

[\(Order of 8-24-1993\)](#)

Sec 6 Service Of Notice To Abate Nuisance

6.1 For a nuisance on private property, the Investigator shall send written Notice to Abate Nuisance by certified mail, with a 5-day return requested, to the last known registered owner of the junked motor vehicle, any lien holder of record, and to the owner or occupant of the private premises on which the public nuisance exists.

6.2 If the post office address of the last known registered owner of the motor vehicle is unknown, notice to the last known registered owner may be placed on the motor vehicle.

6.3 If the last known registered owner is physically located, the notice may be hand delivered.

6.4 If any notice is returned undelivered by the United States Post Office, official action to abate the nuisance shall be continued to a date not less than 10 days after the date of return.

[\(Order of 8-24-1993\)](#)

Sec 7 Procedures When No Hearing Is Requested

7.1 If the Investigator determines that the public nuisance has not been abated and a hearing has not been requested, then the Investigator shall request that a Peace Officer research and verify ownership of the junked vehicle.

7.2 If the title search reflects a registered owner or lien holder other than the person(s) shown on the Notice to Abate Nuisance, the Investigator shall serve a Notice to Abate Nuisance on the person named in the certificate of title as set out in [Section 5](#) and [Section 6](#) of this subchapter, as if no prior action had been taken on the complaint subsequent to the service of the first Notice to Abate Nuisance.

7.3 If the title search shows the registered owner and lien holder to be the persons served with the Notice to Abate Nuisance, the Investigator shall so advise the Administrator who will then:

- a. Estimate the cost to remove and abate the public nuisance; and
- b. Forward the estimate to the Commissioners Court.

7.4 The Commissioners Court shall determine whether or not to order the removal and abatement of the public nuisance. The Commissioners Court determining the final disposition shall be entered in the minutes of Commissioners Court.

7.5 If the Commissioners Court determines that a public nuisance does not exist, then the Administrator shall close the matter and take no further action thereon.

7.6 If the Commissioners Court determines that a public nuisance exists and that the public nuisance should be removed and abated, a copy of such Commissioners Court Order shall be sent by the Administrator by certified mail, return receipt requested, to the last registered owner of the junked motor vehicle, any lien holder of record, and the owner or occupant of the private premises on which the public nuisance exists.

[\(Order of 8-24-1993\)](#)

Sec 8 Public Hearing Before Hearing Examiner

8.1 A person receiving a Notice to Abate Nuisance under this subchapter is entitled to a public hearing before a Hearing Examiner. Such a request may be perfected by submission of a written request to the Administrator within 10 days of receipt of the Notice to Abate Nuisance.

8.2 If a hearing has been requested and no Hearing Examiner has been previously appointed, the Administrator shall request that one be appointed by the Commissioners Court.

8.3 The Hearing Examiner shall set a hearing date and send a Notice of Hearing to the person and address stated in the Request for Hearing or by serving the person in the same manner as used for serving the Notice to Abate Nuisance in [Section 6](#) of this subchapter. The Notice of Hearing shall state the date, time, and place of the hearing and shall be provided at least 10 days prior to the date of the hearing. The ten-day notice requirement may be waived by the person requesting the hearing if such waiver is in writing and signed by the person requesting the hearing.

8.4 The registered owner, the lien holder, the owner or occupant of the private property on which the nuisance exists, and their representatives present at the hearing shall be entitled to present testimony and other evidence, examine witnesses, and argue on the registered owner's behalf.

8.5 Any interested person, including the Administrator and Investigator, may appear and present testimony and other evidence.

8.6 All persons testifying at the hearing shall be under oath.

8.7 The Hearing Examiner shall be allowed to question any person testifying. The Hearing Examiner shall assess the testimony fairly and impartially and in accordance with the law.

8.8 The Hearing Examiner shall make a written determination as to whether a public nuisance exists and sign such written determination. A copy of such determination shall be provided to the Administrator.

8.9 If the hearing results in the determination that a public nuisance does exist, the Hearing Examiner

shall enter an order requiring the removal of the motor vehicle or motor vehicle part. Such order shall include a description of the vehicle and the correct identification number and license number of the vehicle if the information is available at the site. A copy of such determination shall be sent to the Investigator who shall hand deliver or send by certified mail, return receipt requested, a copy of the written determination of the Hearing Examiner to the person designated in the Request for Hearing. If mailed, it shall be mailed to the address designated in said request.

8.10 If the hearing results in the determination that a public nuisance does not exist, the Investigator shall send notice to that effect to the person(s) and address(es) designated in the Request for Hearing and take no further action thereon.

[\(Order of 8-24-1993\)](#)

Sec 9 Post-Hearing Procedures When No Appeal Filed

9.1 If the Hearing Examiner determines that a public nuisance exists, but no appeal is filed pursuant to [Section 10](#) of this subchapter, upon the expiration of 10 days from receipt of the determination by the person designated in the Request of Hearing, the Investigator will determine whether or not the public nuisance has been abated.

9.2 If the public nuisance has been abated, then the Investigator shall make a record thereof, provide a copy of said record to the Administrator, and take no further action thereon.

9.3 If the public nuisance has not been abated, the Investigator shall so advise the Administrator who will then:

- a. Estimate the cost to remove and abate the public nuisance; and
- b. Forward the estimate to the Commissioners Court

9.4 The Commissioners Court shall determine whether or not to order the removal and abatement of the public nuisance. The Commissioners Court Order determining the final disposition shall be entered in the minutes of Commissioners Court.

9.5 If the Commissioners Court determines that a public nuisance does not exist, then the Administrator shall close the matter and take no further action thereon.

9.6 If the Commissioners Court determines that a public nuisance exists and that the public nuisance should be removed and abated, a copy of such Commissioners Court Order shall be sent by the Administrator by certified mail, return receipt requested, to the last registered owner of the junked motor vehicle, any lien holder of record, and the owner or occupant of the private premises on which the public nuisance exists.

[\(Order of 8-24-1993\)](#)

Sec 10 Appeal To Commissioners Court

10.1 An appeal from the written determination of the Hearing Examiner to Commissioners Court may be perfected by giving written Notice of Appeal to the Administrator within 10 days of receipt of a copy of the Hearing Examiner's determination by the person to be notified as shown in the Request for Hearing.

10.2 The Notice of Appeal must be in writing and must be signed by the person giving such Notice or the person's duly authorized representative. The Notice of Appeal must state the name and address of the person giving such Notice or the person's duly authorized representative.

10.3 Notice of Appeal may be given to the Administrator by hand delivery to his office which is currently

located at 2501 Dunstan, Houston, Texas or by certified mail, return receipt requested, addressed to the Director of the Harris County Health Department, P.O. Box 25249, Houston, Texas 77265.

10.4 Upon receipt of a Notice of Appeal, the Administrator shall notify the Commissioners Court and the Commissioners Court shall set the date, time, and place for the appeal hearing.

10.5 The Administrator shall notify the person, or the person's duly authorized representative, at the address designated in the Notice of Appeal by certified mail, return receipt requested, or the notice may be delivered in person, of the date, time, and place of the appeal hearing set by Commissioners Court. This notice shall be provided at least 10 days prior to the date of the appeal hearing. The ten-day notice requirement herein may be waived by the person filing such appeal if such waiver is in writing and signed by the person filing the appeal.

10.6 The Commissioners Court will conduct the appeal hearing and shall hear the testimony of any witness who shall be under oath. Each commissioner and the county judge may question any witness testifying.

10.7 The Commissioners Court Order determining the final disposition shall be entered in the Minutes of Commissioners Court. A copy of such Commissioners Court Order shall be sent by the Administrator by certified mail, return receipt requested, to the person or the person's duly authorized representative at the address designated in the Notice of Appeal.

10.8 If Commissioners Court determines that a public nuisance does not exist, then the Administrator shall close the matter and take no further action thereon.

10.9 If Commissioners Court determines that a public nuisance does exist, then the Administrator shall mail by certified mail, return receipt requested, to the person or the person's duly authorized representative at the address designated in the Notice of Appeal, a copy of such Commissioners Court Order making such determination.

[\(Order of 8-24-1993\)](#)

Sec 11 Post-Appellate Procedures

11.1 Upon the expiration of 10 days from the date that the person or the person's duly authorized representative receives a copy of the Commissioners Court Order determining that a nuisance does exist, the Administrator shall inspect the premises to determine if the public nuisance has been abated.

11.2 If the public nuisance has been abated, then the Administrator shall notify Commissioners Court in writing that the public nuisance has been abated and take no further action thereon.

11.3 If the public nuisance has not been abated, the Administrator shall estimate the cost to abate the public nuisance and forward the nuisance to the Commissioners Court.

11.4 The Commissioners Court shall determine whether or not

- a. Estimate the cost to remove and abate the public nuisance; and
- b. Forward the estimate to the Commissioners Court

11.5 The Commissioners Court shall determine whether or not to order the removal and abatement of the public nuisance. The Commissioners Court Order determining the final disposition shall be entered in the minutes of Commissioners Court.

11.6 If the Commissioners Court determines that a public nuisance does not exist, then the Administrator shall close the matter and take no further action thereon.

11.7 If the Commissioners Court determines that a public nuisance exists and that the public nuisance should be removed and abated, a copy of such Commissioners Court Order shall be sent by the Administrator by certified mail, return receipt requested, to the last registered owner of the junked motor vehicle, any lien holder of record, and the owner or occupant of the private premises on which the public nuisance exists.

[\(Order of 8-24-1993\)](#)

Sec 12 Disposal Of Junked Vehicles

12.1 Upon the expiration of 10 days after the date that the last registered owner of the junked motor vehicle, any lien holder of record, and the owner or occupant of the private premises on which the public nuisance exists receive a copy of the Commissioners Court order determining that a nuisance exists, the Investigator shall inspect the premises to determine if the public nuisance has been removed and abated.

12.2 If the public nuisance has been abated, then the Administrator shall notify the Commissioners Court in writing that the public nuisance has been abated and take no further action thereon.

12.3 If the public nuisance has not been abated, the Administrator shall proceed in accordance with county bidding procedures to let a county contract for the removal of the junked vehicle or vehicle part to a disposal site, scrapyard, demolisher, or other suitable site where the junked vehicle shall be processed as scrap or salvage. The removal and abatement of the public nuisance shall be in compliance with any applicable federal, state, and local laws, rules, procedures, and ordinances.

12.4 Each contract let for the removal and disposal of junked vehicles in accordance with these procedures shall require the contractor to account for and be responsible to the County for the destruction of each vehicle within a specified time and require that the vehicles be kept and disposed of in such a manner that they may not be reconstructed or made operable.

12.5 It shall be unlawful for any person to cause any junked vehicle removed in accordance with these procedures to be reconstructed or made operable after it has been removed.

12.6 The Administrator shall ensure that notice of the identification of each junked vehicle or part of a junked vehicle removed in accordance with these procedures is given to the State Department of Highways and Public Transportation not later than the fifth day after the date of removal.

[\(Order of 8-24-1993\)](#)

Sec 13 Effective Date

The procedures set forth in this Subchapter shall be effective as of September 1, 1993. All previously adopted procedures are superseded and repealed.

[\(Order of 8-24-1993, Section 13\)](#)